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Court

FEDERAL SHARIAT COURT

Date

1982-03-09

Appeal No.

CRIMINAL APPEAL NO. 23/1 OF 1980,

Judge

JUSTICE AFTAB HUSSAIN, CHAIRMAN, JUSTICES ZAHoorUL HAQ, CH. MUHAMMAD SIDDIQ, MALIK GHULAM ALI AND PIR

Parties

NOOR KHAN—APPELLANT VERSUS HAQ NAWAZ AND 2 OTHERS—RESPONDENTS

Lawyers

MUHAMMAD BILAL FOR APPELLANT. AGHA AZIZ AHMAD FOR RESPONDENTS. HAFIZ S. A. REHMAN FOR THE STATE.

Statutes

MUSLIM FAMILY LAWS ORDINANCE (VII OF 1961) - S. 7 CONSTITUTION OF PAKISTAN (1973) - ARTICLES 221, 230 AND 203-D OFFENCE OF ZINA (ENFORCEMENT OF HUDOOD) ORDINANCE (VII OF 1979) - SS. 4 AND 10 ISLAMIC JURISPRUDENCE MUSLIM FAMILY LAWS ORDINANCE (VIII OF 1961) - S. 7 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 403

Judgment

Judgment

Justice Zahoorul Haq, Member—This is an appeal against the judgment of the learned Additional Sessions Judge, Mianwali dated 3-11-1980 whereby he has held that the respondents Haq Nawaz and Mst. Naziran Bibi were not guilty of any offence. The relevant facts are that on 18-11-1979 P. W. 4 Noor Khan filed an F. I. R. in Police Station Saddar, Mianwali alleging that he was resident of Wandha Alam Khelanwala and employed in the Army as Hawaldar and his uncle Fateh Khan son of Amir Khan had married Mst. Naziran Bibi daughter of Sikandar Khan about 30 years earlier and Mst. Naziran Bibi had given birth to 8 children out of this wedlock and three daughters and two sons out of them are still alive. The complainant alleged further that about 10 years back Mst. Naziran Bibi had gone to her fields for cutting of grass when Haq Nawaz son of Alam Khan resident of Nusratwala forcibly took her away and at that time one boy Shafaullah,

her son, came running and informed Fateh Khan, whereupon Fateh Khan and Ahmad Khan went to Haq Nawaz and asked him to return Mst.

Naziran Bibi but Haq Nawaz had not returned Mst. Naziran Bibi. The complainant further alleged that he had made three such applications in respect of this incident to the Martial Law Authorities but Mst. Naziran Bibi has not been restored. It was also stated in the F. I. R. that Mst.

Naziran Bibi had given birth to three children from Haq Nawaz and Haq Nawaz has not so far returned her and has been committing Zina with her.

2. The case was investigated by Sardar Muhammad A. S. I. (P. W. 5) who recorded the statements of the prosecution witnesses and he challaned the two respondents. The prosecution has relied upon the statements of

(1) Fateh Khan (P. W. 2) who was the first husband of Mst. Naziran Bibi ;

(2) Shafaullah (P. W. 3) who was the son of Mst. Naziran Bibi out of the wedlock with Fateh Khan, and (3) Noor Khan (P. W. 4), the complainant in this case who is the nephew of P. W. 2 Fateh Khan.

3. P. W. 2 Fateh Khan stated that he had married Mst. Naziran Bibi 30 years ago and out of this wedlock five children are still alive. He stated! that Mst. Naziran Bibi, accused developed illicit intimacy with her co-accused Haq Nawaz who abducted her about 10/11 years ago and she was now living with Haq Nawaz without Nikah with him and she has borne him 3/4 children. He asserted that he had not divorced Mst.

Naziran Bibi accused. In cross-examination he stated that Noorullah village is a big village. He admitted that Noor Khan (P. W.) was employed in the Army at the time of abduction of Mst. Naziran Bibi. He denied that Noor Khan complainant had made some indecent advances to his wife Mst. Naziran Bibi and she had complained of the same to him. He further denied that he had disbelieved her on that account and injured her with a khudal. He also denied that he had accused her of bad character. He denied that he had pronounced three Talaqs on her at that time, divorced her and turned her out of house. He also denied that she then had gone to her parents' house and after about 5/6 months she had married Haq Nawaz. He admitted that Haq Nawaz used to reside at Chak No. 568 Ahmad Khan Wala, Tehsil Jaranwala when he had abducted Mst. Naziran Bibi. He did not know if Haq Nawaz had married Mst. Naziran Bibi in that

Chak. He denied that before the Nikah of Haq Nawaz, D. W. Amir Khan and Fateh Khan had come to him and verified the Talaq of Mst. Naziran Bibi and also denied that he informed them that he had divorced her. He also denied that Haq Nawaz used to reside in Chak No. 568 Ahmad Khan Wala four years before the abduction and asserted that Haq Nawaz had gone there after taking away Mst. Naziran Bibi with him. He did not know when Mst. Naziran Bibi accused developed illicit relations with Haq Nawaz before the abduction and therefore he did not make any statement in that respect before the Police. He admitted that he had not seen the accused in objectionable position before abduction. He denied that he had not been able to, remarry in view of his improper conduct towards his wife Mst. Naziran Bibi. He also denied that he was harassing the accused with the help of his nephew Noor . Khan who was employed in the Army.

4. Shafaullah, P. W. 3 stated that Mst. Naziran Bibi was his mother and Fateh Khan, P. W. is his father. He stated that 10/11 years ago Haq Nawaz had abducted Mst. Naziran Bibi and he is keeping her without Nikah and 3/4 children were born out of them. He asserted that his father did not divorce her and also stated that Mst. Naziran Bibi accused is living with Haq Nawaz, accused as his wife. In cross-examination he denied that complainant Noor Khan had tried to develop illicit intimacy with his mother and his father had disbelieved her and injured her or that his mother was considered to be immoral. He also denied that his father had pronounced divorce upon Mst. Naziran Bibi. He denied that his father turned his mother out of his house. He also denied that his mother had contracted marriage with Haq Nawaz, accused and that before her Nikah, Amir Khan and Fateh Khan had come to his father to ascertain if he had divorced Mst. Naziran Bibi or that his father had told them that he had divorced her. He also denied that Mst. Naziran Bibi was living with Haq Nawaz for the last 10/11 years as his wife and had 4 children from him. He had admitted that she had suckling child from Haq Nawaz. He had admitted that his father had not remarried. He denied that no body had given the hand of his daughter to him in view of the conduct towards his wife.

5. P. W. 4 Noor Khan deposed that he was employed in the Army. His uncle was Fateh Khan who had married Mst. Naziran Bibi and their five children were alive. He stated that Mst. Naziran Bibi, accused developed illicit intimacy with Haq Nawaz who abducted her 10 years back and was keeping her with him as his wife and 3/4 children were born out of them and they were living together Without Nikah and committing Zina. He lodged F. I. R. on 18-11-1979. He asserted that his uncle Fateh Khan had not divorced her. He admitted that he appeared before Major Tahseen Khan in connection with the abduction of Mst. Naziran Bibi and the present case was registered by the police under his directions. He was confronted with his F. I. R. where it was not stated that Mst. Naziran Bibi had developed illicit intimacy with her co-accused and he admitted that he had stated in the F. I. R. that Haq Nawaz forcibly took away Mst. Naziran Bibi when she had gone to the fields. He had admitted that he had not stated before the police that Fateh Khan, P. W. did not divorce Mst. Naziran Bibi. He denied that he had made some amorous advances towards Mst. Naziran Bibi about 12 years ago and when she complained about it to Fateh Khan he did not believe her and had injured her. He also denied that his uncle Fateh Khan had divorced her at that time by three Talaqs. He also denied that about 5/6 months thereafter she had gone to her relatives in Chak No. 563 Ahmad Khan Wala, Tehsil Jaranwala where she contracted marriage with Haq Nawaz. He also denied that Amir Khan and Fateh Khan had come to his uncle to ascertain about the divorce or that his uncle had replied to them in the affirmative. He denied that the two accused had married thereafter and had got the Nikah performed. He admitted that some time before her abduction Mst. Naziran Bibi and her husband Fateh Khan had quarrelled with each other and Fateh Khan had given her some injuries. He denied that he had lodged the report at the instance of Fateh Khan.

6. P. W. 5 Sardar Muhammad A. S. I. deposed that he had investigated the case. He admitted that he had not joined any other respectable of the village in the investigation and had merely

recorded the statements of Shafaullah, Fateh Khan and Ahmad Khan. He admitted that S. H. O.

had told him that Major Tahseen Khan had directed him for registration of the case and arresting the accused. He admitted that both the accused had appeared before him on 19-11-1979 of their own accord. (This was the next day of the F. I. R. which was registered on 18-11- 1979). He admitted that the accused had told him that Fateh Khan P. W. had divorced Mst. Naziran Bibi, accused and thereafter they had married each other. They had also informed him that the divorced was given 10/11 years ago. He admitted that Muhammad Nawaz Khan son of Alam Khan, Akram Khan son of Alam Khan and Amir Khan son of Muhammad Nawaz residents of Wandha Alam Khelanwala of village Noorullah had made their statements before him.

The prosecution closed its case and gave up Ahmad Khan, P. W.

7. The accused Haq Nawaz in his statement under section 342, Cr. P. C. stated that he had migrated to Chak No. 568 Ahmad Khan Wala, Tehsil Jaranwala, District Faisalabad about 16 years before and his wife had died. Four years after that Mst. Naziran Bibi went to her grandmother Mst. Mehr Khatun at that Chak where she informed that she had been grievously injured by her former husband Fateh Khan, divorced her and turned her out of his house. He stated that their Nikah was performed at that Chak about 11 years ago by Maulvi Sher Muhammad who was member of the Union Council. He asserted that Mst. Naziran Bibi is his legally wedded wife and has given birth to 4 children and is still living with him as such. In answer to the question why this case against him, he replied that after divorce of Mst. Naziran Bibi, Fateh Khan, P. W. made efforts for second marriage but on account of his maltreatment with Mst. Naziran Bibi no body gave her daughter to him and out of jealousy he had brought this case after 12 years in order to ruining their family life,

8. Mst. Naziran Bibi in her statement under section 342, Cr. P. C. stated that she had married Fateh Khan and bore him 8 children. She denied the allegations of illicit intimacy or her abduction by Haq Nawaz as false and scandalous, and stated that about 12 years before, Noor Khan, the complainant had come on leave from the Army and finding her alone he made objectionable advances to her which she repelled. She complained about this to her husband Fateh Khan but he abused her and charged her with immoral character and gave four blows on her person with a khudal and wanted to murder her but Halim, son of Baz Gul, nephew of Fateh Khan and Halim's wife Mst. Wazir Khatoon and her own son of Shafaullah, P. W. intervened and saved her life and at that very moment Fateh Khan, P. W. pronounced three divorces upon her and turned her out of his house. She went to her mother at village Wattakbel who got her injuries treated and kept her for about three months but then advised her to go to her grandmother at Chak No. 568, Ahmad Khan Wala. She went to her grandmother. Amir Khan and Fateh Khan residents of Chak No. 568 had gone to Wandha Alam Khelanwala in Mianwali Tehsil and had met Fateh Khan, P. W. to ascertain about the factum of divorce and after bemg satisfied that she had been divorced, they had gone back and arranged her Nikah with Haq Nawaz.

She also stated that she bears the healed marks of injuries on her person by Fateh Khan P. W. which can be seen. In answer to question why this case against her, she stated that no one was prepared to give hand of his daughter to Fateh Khan on account of his ill-treatment with her while on the other hand she had settled in life with her present husband and bore him four sons and was living peacefully. She had asserted that Fateh Khan, P. W. had brought a false case after about 12 years through his nephew Noor Khan who is employed in the Army and Noor Khan manoeuvred this false case through the Army authorities.

9. The respondent Haq Nawaz and Mst. Naziran Bibi produced D. Ws. namely Amir Khan (D. W. 1) and Muhammad Nawaz Khan (D. W.

2). Amir

Khan stated that originally Haq Nawaz used to reside at Wandha Alam Khelanwala Dakhli village Noorullah. He migrated to Chak No. 568, Ahmad Khan Wala about 16 years ago and his wife died there. About 4/5 years after migration of Haq Nawaz, Mst. Naziran Bibi went there as her grandmother Mst. Mehr Khatoon was residing there. Mst. Mehr Khatoon summoned him and Fateh Khan, son of Muhammad Khan and requested them to advise her what to do because Fateh Khan, P. W. had divorced Mst. Naziran Bibi. This D. W. went to Wandha Alam Khelanwala alongwith Fateh Khan and enquired from P. W. Fateh Khan about the divorce. P. W. Fateh Khan told them that he had divorced her because she was not worthy to be kept in his house as his wife. They returned to their village and the brotherhood decided that Mst.

Naziran Bibi could get married and she therefore married Haq Nawaz. Maulvi Sher Muhammad, Member of the Union Council performed the Nikah and since then she was living with Haq Nawaz as his wife and they had now migrated to Wandha Alam Khelanwala Dakhli village Noorullah and are residing there. In cross-examination he had admitted that Bakhtawar Bibi is his mother and she is the daughter of Sultan Sikandar Khan who was the father of Mst. Naziran Bibi, accused. He also admitted that Haq Nawaz, accused is the son of the sister of his mother. He stated that Sher Muhammad Khan who performed Nikah had died. He also stated that Nikah between the accused was shari and not entered in the Register. He denied that he was making a false statement in view of his relationship. He denied that 2/3 months after this case he had gone to Fateh Khan, P. W. and requested him to divorce Mst. Naziran Bibi after getting the hand of a girl and Rs. 8,000.

10. D. W. 2 Muhammad Nawaz Khan stated that Haq Nawaz, accused is his real brother. On learning that Fateh Khan had maltreated and divorced his wife Mst. Naziran Bibi he had gone to him and P. W. Fateh Khan had told him that she was not worthy of being kept in his house and therefore he divorced her. After 5 or 6 months, Fateh Khan and Amir Khan (D. Ws.) had come to ascertain about the divorce of Mst.

Naziran Bibi as she was to be married with Haq Nawaz and thereafter she was married. He denied that story of the divorce of Mst. Naziran Bibi was false. (He had gone to his residence of Wandha Alam Khelanwala Dakhii village Noorullah, Tehsil Mianwali). He denied that Haq Nawaz had abducted Mst. Naziran Bibi to Chak No. 563 Ahmad Khan Wala. He denied that he was making a false statement.

11. The learned Additional Sessions Judge acquitted the accused/respondents on the ground that Fateh Khan, P. W. had divorced her wife Mst. Naziran Bibi 10/12 years ago and that this position had been admitted by Fateh Khan, P. W. before D. W. Amir Khan. The learned Additional Sessions Judge has also heard that there was nothing on record to indicate if Fateh Khan took any step to recover Mst. Naziran Bibi or got Haq Nawaz prosecuted and that he has not given any explanation of his failure to do so in spite of the fact that it had been alleged that Mst. Naziran Bibi accused was abducted by Haq Nawaz accused about 10/12 years ago. The learned Additional Sessions Judge held that this conduct of Fateh Khan, P. W. lends much support to the evidence of Amir Khan and that Muhammad Nawaz Khan, D. W. had also deposed about the divorce.

12. The learned Additional Sessions Judge also held that the provisions of section 7 of Muslim Family Laws Ordinance, 1961 were against the Injunctions of Islam to the extent to giving of notice of Talaq to the Chairman by the husband and in respect of the notice becoming effective after 90 days. The learned Judge has relied upon Articles 227 and 268 of the Constitution for the

proposition that section 7 of the Muslim Family Laws Ordinance was against the Muslim Personal Law and the Constitution. We have, however, no hesitation in repelling that proposition of law pronounced by the learned Additional Sessions Judge. The learned Additional Sessions Judge has failed to notice that Article 227(1) of the Constitution in respect of bringing laws into conformity with Islamic provisions can be given effect only in the manner provided in Part IX of the Constitution as provided in sub-Article (2) of Article 227 and the manner provided in Part IX of the Constitution is the composition of Islami Council under Article 228 and then functions of Islami Council are contained in Article 230 which makes recommendations to Parliament and in sub-Article (4) of the same Article 230 the final report of the Council is to be laid for discussion before both the houses and the Parliament and the Assembly after considering the report are to enact laws in respect thereof within a period of two years of the final report. It is thus clear that Article 227 of the Constitution is controlled by Article 230 and unless the Parliament enact laws in accordance with the recommendations of the Islami Council the provisions of Article 227 do not have the effect of rendering the existing laws un-Islamic automatically. The learned Additional Sessions Judge was, therefore, completely in error in that respect. He was also in error in having relied upon Article 268 of the Constitution for the purpose of assuming the power under Article 268(6) for bringing the existing laws into accord with the provisions of the Constitution. The learned Additional A Sessions Judge has not been able to correctly construe the provisions of the Constitution and his view that section 7 of Muslim Family Laws Ordinance is against Muslim Personal Law or against the Constitution is evidently unjustified. The jurisdiction for declaring any law to be repugnant to the Injunctions of Qur'an- and Sunnah rests with the Federal Shariat Court under Article 203-D of the Constitution as provided in the Provisional Constitution Order of 1981 and appeal from that judgment can be taken to the Supreme Court. No other Court has the power to declare any law un-Islamic. We have, therefore, no hesitation in agreeing with Mr.

Muhammad Bilal, learned counsel for the appellant that the learned Additional Sessions Judge has misconstrued the law on this point.

13. Mr. Muhammad Bilal had also contended that the findings in respect of giving of divorce by P.W. Fateh Khan to Mst. Naziran Bibi was not justified and that trial Court should have relied upon the evidence of P. W. Fateh Khan and P. W. Noor Khan and Shafaullah in this respect.

We have scrutinised the evidence of the prosecution as well as of the defence and the statements of the two respondents/accused and we are of the view that the trial Court has taken a reasonable view of the evidence and that the matter was not really free from doubt and the benefit of doubt should have been given to the defence. We are clearly of the view that the prosecution has given no explanation whatsoever as to why they did not lodge any prosecution against Haq Nawaz and Mst. Naziran Bibi in spite of the fact that all the three P.Ws. knew that Haq Nawaz and Mst. Naziran Bibi had been living together as husband and wife about B 10/12 years before the F. I. R. and they had procured four children out of their living as husband and wife. It was clearly stated in the F. I. R. that Fateh Khan P. W. and his brother Ahmad Khan had gone to Haq Nawaz for the return of Mst, Naziran Bibi but she had not been restored, therefore, the involvement of Haq Nawaz was clearly known to them yet they kept quiet for long time. The complete silence of the prosecution for a period of 10/12 years in this regard goes a very long way to support the inference that the version of the defence might have been true, particularly when

O. W. Amir Khan has made a definite statement about the admission of

P. W. Fateh Khan that he had divorced Mst. Naziran Bibi as she was not worthy of being kept as wife. Amir Khan D. W. being the nephew of Mst. Naziran Bibi was the proper person who could be entrusted with the inquiry of divorce.

14. We are further of the view that in the F. I. R. the allegation of forcible abduction of Mst. Naziran Bibi by Haq Nawaz was falsely made and that prosecution witnesses had completely failed to support the allegation of abduction and had later on developed the case of illicit intimacy between Mst. Naziran Bibi and Haq Nawaz which was clearly an afterthought and an improvement upon the F. I. R. and thus the prosecution case suffered from _ a basic infirmity and weakness. Moreover even the alleged development of C illicit intimacy between Mst. Naziran Bibi and Haq Nawaz could not be proved by the prosecution witnesses and on this account also the benefit of doubt has to be clearly given to the defence. The bona fides of the accused were evident from the fact that both the accused appeared voluntarily before the police on the very next day of the F. I. R. and stated before the Investigation Officer the same position which they have adopted in their defence.

15. We are further of the view that in Islamic Fiqah a delay in making a complaint in respect of penal offences is not favoured and particularly in respect of offence of Hudood, it has been opined by the jurists that the delay D in making the complaint is either because the complainant wanted to suppress the commission of the crime or that he was motivated by feelings of hatred. Such opinion has been expressed in Badaiulsanai Fi Tartibisharai by Kasani, Vol. VII, pages 46 & 47 and Tabyinul Haqaiq, Vol. III, page 187 and also in A1 Jarima by Abu Zahra at pages 79 to 90. Mr. Muhammad Bilal, Advocate for the appellant had brought with him Maulana Ali Muhammad, Nazim, Madrisa Qasamul Aloom, Mianwali, who had made a study of the subject in this respect.

We heard him as a jurisconsult and we are thankful to him for the assistance rendered by him. In Islamic Fiqah the delay is referred to as "Taqadum". Maulana Ali Muhammad has submitted that Taqadum was not necessary to be taken into consideration in respect of dy*" like

Nikah and Talaq but he was himself of the view that in respect of punishment particularly in cases of Hudood, it was necessary to consider Taqadum. He whs of the view that basically the question before us was of pronouncement of Talaq by Fateh Khan, P. W. upon Mst. Naziran Bibi and since this was one of the matters concerned with dy*-" therefore, we should not worry ourselves in respect of the delay of 10/12 years. He was also of the view that since talaq had not been proved, therefore, the accused respondents were committing crime daily whenever they cohabited with each other claiming themselves to be husband and wife. We are, however, of the view that the question before us is basically of a criminal nature and it is not a matter of Huqooql Ibad now. We find that the F. I. R. had been alleging that the commission of Zina which could have involved very servious punishment and therefore the principle of Taqadum has to be taken into consideration by this Court. We find that even a delay of one month is regarded as fatal by Imam Muhammad.

Some of the jurists are of the opinion that if there is no reason of delay then a delay of about three months in making the complaint shows that the allegations are either false or these are motivated. Hazrat Umar has opined as follows in this respect

(but long after that) so indeed they are such witnesses who are inclined towards hatred."

Al-Mabsut Lissarakhsi, Vol. IX, page 69. With great respect, we agree with the views of the Muslim jurists and we are of the view that the F.

I. R. lodged by Noor Khan in this case was hit by the principle of Taqadum and the case should have been dismissed.

16. In the particular circumstances of this case it is not necessary to notice the arguments of Mr.

Muhammad Bilal on the point that since notice under section 7 of Muslim Family Laws Ordinance is not alleged to have been given by Fateh Khan, P. W., therefore, the marriage between Fateh Khan,

P. W. and Mst. Naziran Bibi accused should be held to be subsisting. He had relied upon P L D 1963 SCSI, where it was held that divorce is not effective till 90 days of expiry of notice of divorce by husband to Chairman, Union Council. P L D 1973 B J 36 held the same view.

17. We are of the view that the challenge in respect of lack of notice under section 7 of Muslim Family Laws Ordinance of 1961 is really of academic importance and the trial Judge should have ignored the same as the factum of lack of notice as such was not a fact in respect of which any question had been asked by either the prosecution or the defence and therefore no finding £ could have been given in respect thereof. The case had been fought on the question of divorce which had been denied by one party and asserted by the defence. None of the parties was conscious of the requirements of notice under section 7 and therefore no one had considered it as material for the purposes of a criminal case. '

18. Both the cases cited by Mr. Bilal are however distinguishable. Case of P L D 1973 B J 36 was of a civil nature. The case of P L D 1963 S C 51 was decided on the special facts of that case where the divorce was alleged to have been given by Mr. Gardezi to his wife Renate on 5-11-1961 and the marriage between Renate and Col. Yousaf was solemnized on the 2nd of January, 1962, without even the expiry of 2 months.

Mereover the Supreme Court had also held at page 72 that there had been no proper divorce proved and hence P L D 1963 S C 51 was really a case decided on the basis of its peculiar facts. The following observations of the Supreme Court at page 76 para. 43 are very significant :—

“It is also fairly clear that by the 2nd of January, 1962, even the iddat period prescribed by Islamic Law for a divorced wife, had not yet expired.”

These observations of the Supreme Court clearly indicate that if 90 days had expired in that case after divorce then a different view could be possible to take in respect of the offence committed by Col. Yousaf in marrying Renate whose marriage had not been properly dissolved.

19. In the particular circumstances of the case before us, we are of the view that the version of the defence in respect of the divorce having been pronounced by Fateh Khan, P. W. appears to be more plausible in view of the long acquiescence of 10/12 years by the complainant party in allowing the two accused to continue to live as husband and wife without any challenge or prosecution whatsoever. In these circumstances it would be making the technicality of the provisions of notice under section 7 of the Muslim Family Laws Ordinance too cumbersome on the parties who have been living together as husband and wife without any challenge for 10/12 years. They were all the time thinking that they had been validly married after divorce by P. W. Fateh Khan and inaction of Fateh Khan had reinforced their belief. Such a state of affairs could not be held to be covered by the provisions of definition of Zina as provided in section 4 of Ordinance VII of 1979. We find that the prosecution had not bothered to raise any challenge till such time that the accused respondents had been living together at Chak No. 568. Ahmad Khan Wala, Tehsil Jaranwala but after their arrival in village Wandha Alam Khelanwala, the prosecution was initiated which shows that it was motivated out of revenge and feelings of loss of face.

20. We, therefore, find no force in this appeal which was dismissed by a short order passed on 9-3-1982.

Aftab Hussain, Chairman.—This appeal was ordered to be dismissed by a short order dated the 9th March, 1982 for reasons to be recorded later. I have gone through the reasoned order proposed by my learned brother. I am in agreement with the proposed order of dismissal of appeal though my ground of according benefit of doubt to the respondents is their lack of knowledge about the provisions of Muslim Family Laws Ordinance.

I am also in agreement with his finding that no Court other than the Federal Shariat Court (whose order is no doubt subject to appeal to the Supreme Court) can declare a law as repugnant to the holy Qur'an and the Sunnah of the holy Prophet. The finding of the learned trial Court regarding the vires of section 7 of the Muslim Family Laws Ordinance has been rightly set aside.

2. But since my learned brother for whose erudition and masterly grasp of Law I entertain the highest respect, has made some observations about the 'applicability' of the Hanafi principle of Taqadum and the mere technical nature of section 7 of the Muslim Family Laws Ordinance and its applicability to criminal cases I would like to consider these matters in my own light.

3. Taqadum is explained by Allama Zalaie in Tabyinul Haqaiq, Vol. III, page 187 :

"Taqadum originates from Qadeem and it is the antonym of new and it is in this meaning that it is used ; i. e. a Hadd cause of which is old and not new. The word Qadeem is sometimes used in the sense of that which continues but it is not meant here."

Taqadum in relation to the crime will therefore mean an offence which!, is not of recent occurrence. This is clarified by Dr. Abdul Aziz Aamir in his book "Attaazir Fil Shariatil Islami", page 522: "Taqadum means passing of sometime after commission of the offence or after the passing of the order of sentence, but before its execution. Its consequence is that it prohibits from passing of sentence in crimes and from executing those already passed."

4. The example of the latter is furnished by Sharah Fathul Qadeer, Vol. 5, p. 9. It is said that if a convict runs away after he is struck by stone or stripes and time elapses before he is rearrested the Hadd will not be carried out.

5. In regard to the proof of an offence which is hit by the principle of Taqadum it is recorded in Tilka Hadood Ullab hy Ibraheem Ahmed Alwaqafi, page 38 that :

"When evidence is produced about an old offence of adultery the evidence Should not be accepted according to the Hanafees,"

6. The principle of Taqadum is based on one tradition of the Holy Prophet and another tradition of Caliph Omar. The first tradition is that the Holy Prophet said that :

"Allah will keep the secret of one who keeps the secret of his brother Muslim."^{*}

From this it is inferred that concealment of evidence in Hudood matters is within the option of the witness. The second tradition is as stated by Caliph Omar that those who appear as witnesses in a Hadd offence not at the time of its occurrence (not within reasonable time after the occurrence) but later they should be presumed to be acting as witnesses on account of personal hatred or dislike.

7. The principle of Taqadum, according to Imam Abu Hanifa, is applicable only when the appearance of the witness is delayed and there is no valid explanation for it but if the evidence is

delayed for good cause for example distance from the Court of the Qazi or illness of the witness or restriction like that, his evidence would be acceptable and will not be hit by Taqadum (Shareh Fathul Qadeer, Vol. V, page 56, Attashriul Janai UI Islam by Abdul Qadir Audaa). Specific exception is added in Mujella meaning "of his respondent be an influential person."

8. A very interesting and rational explanation of these words is given in Sharh ul Majella, Vol. V, p. 178 (printed in Hams 1355 Hijra). Its translation is reproduced : "Thirdly the words "litigant i. e. respondent being an influential person" point to the fact that to be of influence does not necessarily mean a man in authority. It is merely by chance or common usage that this has been often qualified by words tyrant man in authority which means that even though he (the respondent) is neither a man in authority nor any of his subordinates, but he exercises an influence and distinction with wicked enough to fabricate false criminal cases against those who rest nr nnnose him then he shall be considered an influential person Nay his influence in such a case would be stronger than it would have been if he were himself a man in authority. For we have often seen the like of them, May Allah save His servants from their evils, who have captured land and property and on the other hand we have seen people whom fear from their evil often prevents from bringing any case against them in any Court. In such cases, therefore, passage of time shall not be a bar from hearing the case against such people except if any passage of time occurs after the end of their influence

The Mujella deals with the question of limitation for suits in its Book/ XIV, Chapter II beginning with S. 1660. Section 1663 clarifies that then lapse of time which prevents the hearing of actions, is the lapse of time which! had taken place without excuse. It reads :

1663. In this chapter is considered, that is to say, the lapse of time which prevents the hearing of actions, is the lapse of time which has taken place without excuse.

On the other hand consideration is not given to time which passes, in consequence of one of the excuses allowed by Sheri Law

Such as, a person being an infant or madman or person of unsound mind, whether the plaintiff has a guardian or not, or person being in a foreign country a long way off (rauddet sefer), or his opponent being a person in power.

Therefore, the beginning of the time which elapses is considered to be from the removal of the excuse.

For example.—The time when a person is an infant is not considered in the time passed. The time elapsed from the date when he arrived at full age is considered alone.

Likewise, when a person's action is with one who is in power, if time elapsed in consequence of his not being able to bring his action, while the power of his opponent lasts, it does not prevent the hearing of that action.

The time elapsed is only considered from the date when the power ceased."

There is no reason why this exception should not apply to criminal cases.

9. Taqadum is applied by the Hanafi Jurists to only three categories of Hadd punishment e. punishment for adultery, for drinking and for theft, since all these punishments pertain to matters concerned with the rights of k Allah. The limitation is not applicable to the punishment of qazf since it involves the rights of the people (Haqooqul Abad). It was for this reason that it was

argued by Maulana Ali Muhammad that Taqadum is not applicable to Talaq (divorce). He cited in support of this from Fatawa Alamgiri, p. 339 in which is recorded the verdict that Haqooql Ibad extends to such matters as Nikah and Talaq.

10. Ibn-e-Abi Laila said that Taqadum hits not only the evidence but also confession (Sharah Fathul Qadeer, Vol. V, page 56). According to Imam Abu Hanifa confession in case of drinking only is hit by Taqadum and in this he is supported by Abu Yousuf but Muhammad bin A1 Hasan differed from both on this point. In this view confession is not hit (not even confession of drinking) by Taqadum (Sharah Fathul Qadeer, Vol. V, page 56).

11. Imam Abu Hanifa left it to the Qazi to determine the limitation of Taqadum but Imam Muhammad (with whom Imam Abu Yousuf agreed) fixed one month's time. Some other Jurists fixed it at six months.

12. But Imam Malik, Imam Shafie, his pupils, Zaidee and Zahiree are against the principle of Taqadum and are in favour of acceptance of delayed evidence as well as delayed confession. (Almughni, Vol. X, page 187, Almuhalla, Vol. II. page 144, Sharhulazhar Vol. IV, page 339, Attashriul Janai-ul-Islami by Abdul Qadir Auda, Vol. II, page 417).

13. Two different opinions are attributed to Imam Muhammad bin Hanbal. One is that he agreed with Imam Abu Hanifa and the other is that he agreed with the opinion of Imam Malik, Shafie and the second opinion prevails now among the Hanblis.

14. The principle of Taqadum is not a principle laid down either in the holy Qur'an or the Sunnah. There is also no Ijma' on it, since only the Hanafies favour it. It should therefore, be tried for its correctness and applicability to modern age on logical rational. Before proceeding to doL that I would like to clarify my inability to agree with the propositions about the applicability of Taqadum to voluntary confessions and execution of sentence.

15. Three of the Hadd cases only are made subject to the principle oi

Taqadum and one of the salutary principle which is recognised by all the Jurists is that in Hadd matters it is open to the accused to retract the confession not only during trial but also before the execution of the sentence.

It would be meaningless to give sanctity to the principle in respect of Taqadum or to apply it to a confession which though delayed is not retracted by the accused himself. Similarly it would be a strange proposition to allow a person to nullify the sentence passed by a court by his own illegal act of running away or escaping from it. I could understand the rationality of this principle' if it had been made applicable to execution of decree passed in civil matters since it can be said reasonably that a decree-holder who fails to take active steps for the execution of his decree and would like merely to keep the Sword of Damocles hanging over the head of his judgment-debtor for the satisfaction of some personal vendetta should remain cognizant and aware of the possibility of losing that edge on account of limitation, but to apply it to criminal cases in the manner proposed would amount to giving M the convict a lesson in transgression of law and in deprecating and minimizing the authority of the Court.

16. And why after all and on what logical ground can Taqadum against execution of legal sentence and in respect of confession he extended to at most three Hadd cases and denied to others.

17. It is quite possible that while extending the principle to execution of the sentence of Hadd the

Jurists may be having in view the story of Maaiz who tried to run away at the time of stoning but was not allowed to do so by those who were executing the sentence on him. When this was narrated to the Holy Prophet he observed that he ought to have been brought to him. But this precedent cannot be cited in favour of Taqadum, since we do not know whether the Prophet would have considered it as retraction of his confession or he would have given him some other advice. By entering into the realm of conjecture we can derive some principle from this, and the Jurists have derived the principle that retraction of confession is possible till before the execution of the sentence, but it cannot lead to the application of the principle of Taqadum on it.

18. Now out of the two grounds which are made the basis of this principle 1 cannot agree with the ground that a witness has any option in giving evidence in matters of The injunctions of Allah are : 65 : 2 "And keep your testimony upright for Allah." 2 : 283 "Hide not testimony. He who hideth it, verily his heart is sinful."

2 : 140 "And who is more unjust than he who hideth a testimony which he hath received from Allah."

18. In the face of these injunctions the tradition of the Holy Prophet cannot be interpreted as laying down something contradictory and allowing concealment of evidence.

19. The reliance on the tradition of Hazrat Omar justifies the applicability of this principle as a principle of prudence which is not different from the principle followed by the criminal Courts in Pakistan.

20. Some of the Jurists have even fixed the period of limitation ranging from one month to six months. But according to Imam Abu Hanifa it is up to the Qazi to consider the circumstances of each case before applying the principle.

21. There is no logical basis for the fixation of one month or six months time particularly when the rule permits of exceptions in the nature of expknation for the delay. The opinion of Imam Abu Hanifa that the Qazi should consider whether the delay is reasonable or not, is exactly in V accordance with the principle that we follow in the administration of criminal justice.

It appears that the sense in which principle of Taqadum was discovered by Imam Abu Hanifa is the same which is followed in the administra- tion of criminal justice by the Courts in Pakistan. A few instances in support of this will be sufficient. yy

In Muhammad Shafi and another v. The State P L D 1968 Lah. 869 (875) as observed that the interval in lodging the report may have been utilized in concocting the story and this delay was fatal, in these circumstances it throws considerable doubt as regards the genuineness of the prosecution case.

Similarly in Muhammad Boota and others v. The State 1972 P Cr. L J 567 the benefit of delay was given to the accused in the circumstances of that case.

Also see to the same effect Wahid Bux v. The State 1969 P Cr. L J 1317.

But this principle cannot be adopted as a principle of permanent! limitation since there are cases where mere delay mav not be, objectively)0 speaking, sufficient to give benefit of doubt to the accused or to release him. 26

In Muhammad Anwar v. The State 1968 P Cr. L J 1597, it was explained that it is not delay per se

in all cases which would give rise to an adverse presumption against the prosecution, but delay in the particular circumstances of a case, coupled with possibilities of fabrication or exaggerations of facts by conference and consultations that would tend to militate against the prosecution.

In Muhammad Luqmany. The State P L D 1969 Lah. 257, similar proposition was laid down.

In Zar Bahadur v. The State 1978 S C M R 136, it was observed that the question of delay is not of much consequence in the absence of evidence of enmity because interested witnesses would not normally allow the real accused in a murder case to escape by implicating an innocent person.

24. I have cited these cases in order to illustrate that in the actual administration of justice the delay in the report to the police may sometime be fatal to the prosecution case and in other cases may not be of any consequence. The question in each case is to be decided on the particular facts of that case. The view of Imam Abu Hanifa that this is a matter which should be judged by the Qazi irrespective of time element is thus more in consonance with experience in the administration of criminal justice.

25. Even otherwise the provision of a codified law cannot be cut down or extended by applicability of such a principle except in relation to the discretion of the Judge to appreciate the facts of a case.

26. In a codified law we cannot rely upon a juristic principle except for the interpretation of the law which has been framed on the basis of Shariah but a juristic principle cannot be allowed to cut down the applicability of the law if it is not made a part of it. By relying upon the principle of Taqadum severity of the offence of Zina cannot be diluted. As stated /' above it can be applied only for the appreciation of the evidence and according to the strict principle in a Hadd case only. Even if it is held applicable as such, can it be applied to a law in which in the absence of proof of Hadd the accused cannot be allowed to escape punishment but can be punished in Taazir provided the evidence justifies his conviction.

It would follow that, if at all it can be used for removing from him the sentence of Hadd. He will still remain exposed to conviction in Taazir.

27. The principle of delay is immaterial in a case of a continuing offence. This is proved from the citation in Tabyanul Haqayaq, Vol. III, Q page 187 by Allama Zalai, according to whom the word "Qadeem" is the origin of laqadum but it is not "used in the sense of that which continues".

Apart from that it cannot be applied to a matter in which the judgment can be based only on the question whether "Talaq" which is definitely a matter concerned with Haqooqul Ibad, was final. If I had felt satisfied that the story of oral "Talaq" should be debanked I would not have hesitated in convicting and passing sentence on both the accused. As to whether the sentence would have been Hadd or Taazir is a hypothetical question in the circumstances of the case to which I need not revert.

28. As regards section 7 of the Family Laws Ordinance not much discussion is necessary. It clearly lays down that Talaq not followed by the R procedure provided by the section is not complete which means that the marriage would subsist.

29. There are a number of cases in which this section has been so interpreted. Ali Nawaz Gardezi v. Muhammad Yousuf Mst. Fehmida Bibi v. Mukhtar Ahmad and another Mst. Maqbool

Jan v. Arshad Hassan and another (3), Latif v. Mst. Hanifan Bibi (4), Mst.

Ghulam Fatima v, Abdul Qayyum and others For the effectiveness of this construction it is immaterial whether these cases arise out of civil or criminal proceedings since section 7 merely determines the status of the parties and all Courts are duty bound in law to give effect to that status. The only exception can be of a benefit of doubt which may be given to the accused in a criminal case as has been given by us to the respondents in the present case.

30. At least two of the cases referred to above are criminal cases; Ali Nawaz Gardezi v. Muhammad Yousaf was a criminal case decided ultimately by the Supreme Court and Muhammad Yousuf v. Mst. Hanifan Bibi was a case of quashment of criminal proceedings which on this very construction was dismissed.

31. The Supreme Court in para. 13 of the judgment dealt with the different types of Talaq (Ali Nawaz Gardezi v. Muhammad Yousuf) and then categorically gave a finding about the Talaq being ineffective on account of non-compliance with the provisions of section 7. The relevant portion of the paragraph is reproduced:

“Mr. Mahmud Ali also put forward the suggestion that the word “effective”, occurring in subsection (3) of this section, means “effective against the husband only”, and that if the husband failed to give the required notice to the Chairman, the Talaq would be effective at once. This interpretation would make the section itself wholly nugatory. All that the husband has to do then is that he should refrain from giving the requisite notice and the talaq would automatically take effect. 26

This is exactly the mischief which the section seems designed to remedy.”

In the next para, it is stated:—

“But here it is obvious that the object of section 7 is to prevent hasty dissolution of marriages by Talaq, pronounced by the husband, unilaterally, without an attempt being made to prevent disruption of the matrimonial status. If the husband himself thinks better of the pronouncement of talaq and abstains from giving a notice to the Chairman, he should perhaps be deemed, in view of section 7, to have revoked the pronouncement and that would be to the advantage of the wife. Subsection (3) of this section precludes the talaq from being effective as such, for a certain period and within that period, consequently, it could not be said that the marital status of the parties had in any way been changed. They would still in law continue to be husband and wife.”

32. The subsequent observations about the expiry of 90 days period from the date of alleged pronouncement of talaq was only a reply to the counsel’s argument and not the interpretation of section 7. On the other hand it was held that the failure of the husband to give notice to the Chairman about the divorce amounts to revocation about the pronouncement of the divorce.

33. The Supreme Court interpreted the case of Ali Nawaz Gardezi v. Muhammad Yousuf in similar manner in Mst. Fatima v. Abdul Qayyum.

This will be apparent from the fact that the trial Judge had relied upon the judgment of Syed Ali Nawaz Gardezi and the categorical law laid down therein. The Supreme Court granted leave to appeal to examine a different question whether Khula or divorce by mutual consent was irrevocable and section 7 of the Family Laws Ordinance had no application to it. Since it found that on the evidence this question did not arise it held that as such the talaq had not become effective but stood revoked as no notice under subsection (1) of section 7 was given by the husband. In these circumstances it is not open to us to take a different view on this point which

otherwise also would not be justified in the face of the unequivocal language of section 7. It was in view of this that I had asked the learned counsel for the respondent to advise his client correctly about the legal position so that any conscious persistence on their part to flout the law may not land them in the difficulty of another prosecution.

Muhammad Siddique, Member.—I agree with the reasoning and conclusions drawn by my learned brother Zahoorel Haq, J.

2. The learned Chief Justice has inter alia relied upon the following article 1663 from Mujellah:—

“1663. In this chapter is considered; that is to say, the lapse of time, which prevents the hearing of actions, is the lapse of time which has taken place without excuse.

On the other hand consideration is not given to time which passes, in consequence of one of the excuses allowed by Sher' Law.

Such as, a person being an infant or madman or person of unsound mind, whether the plaintiff has a guardian or not, or a person being in a foreign country a long way off (muddet sefer), or his opponent being a person in power.

Therefore, the beginning of the time which elapses is considered to be from the removal of the excuse.

For example.—The time when a person is an infant is not considered in the time passed. The time elapsed from the date when he arrived at full age is considered alone.

Likewise, when a person's action is with one who is in power, if time elapsed in consequence of his not being able to bring his action, while the power of his opponent lasts, it does not prevent the hearing of that action.

The time elapsed is only considered from the date when the power ceased.” After quoting the above article the learned Chief Justice has observed as under: —

“There is no reason why this exception should not apply to criminal cases,”

With due respect I find myself unable to agree with the above finding of the learned Chief Justice. The Mujellah deals with the question of limitation for various civil suits/civil actions. The expression used for limitation to bring civil actions is 'Tamadi' whereas the word used for delay in criminal prosecution is 'Taqadum' There is basic difference between Tamadi and Taqadum i. e. period of limitation in civil actions and the delay in criminal prosecution. The object in civil litigation is to protect or restore a right asserted by one party and denied or violated by the other. The distinction between crimes and civil wrongs broadly speaking is that crimes are public wrongs while civil wrongs are private wrongs.

The civil wrongs are an infringement or privation of the private or civil rights belonging to individuals while the crimes are a breach and violation of public rights and duties which affect the whole community. A crime is an act deemed by law to be harmful to society in general, although its immediate victim is an individual. Those who commit crimes are therefore proceeded against by the State in order that if found guilty they may be punished. Civil wrongs are deemed only to infringe the rights of the individual wronged and not to injure society in general and therefore, the law leaves it to the victim to sue the defendant in the Courts for the required relief. Generally speaking for civil actions the period of limitation is prescribed by the statute and it varies

according to the nature of the right claimed. In some cases the period of limitation may be only days while in others it may be years. For example according to Mujallah article 1661 the dispute regarding waqf property can be agitated within 36 years. Similarly an infant can agitate his matter after attaining the age of majority. No such period of limitation is prescribed for criminal prosecution/proceedings. Such long period of limitation cannot be pressed into service in criminal proceedings. If the principle of Tamadi prescribed for civil actions is extended to criminal proceedings, it will give handle to the prosecution or the complainant to create false evidence and it may be possible that true witnesses who saw the actual occurrence may not be available after such a long period—some may have even died or otherwise may not remember the exact details of the occurrence. In modern times the delay in criminal proceedings may be misused by the interested party against the other which may defeat the very purpose of justice. I am, therefore, clearly of the view that the principle of tamadi of the periods of limitation which are applicable in civil matters cannot as such, be extended to or made applicable to criminal proceedings as taqadum. The delay in criminal cases always adversely affects the prosecution unless satisfactorily explained. The delay in criminal cases has to be examined in each case and it is the duty of the Court/Qazi to judge the effect of delay in each case, In some cases a delay of few hours may be fatal to the prosecution while in others, delay of few days or months may not spoil the prosecution case, if the delay is satisfactorily explained by the W, ni?' ~ *s therefore not proper to make any generalisation in this behalf. The effect of delay in each case depends upon the facts of that particular case. In the instant case admittedly there is a delay of about 11 years in lodging the First Information Report against the accused-respondents. Noor Khan, complainant and Fateh Khan (P. W. 2) husband of Mst. Naziran, accused respondent, have offered no explanation whatever for this inordinate delay. Further they have not even alleged that the accused party was in any way directly or indirectly responsible for this delay or otherwise prevented the complainant party from initiating criminal proceedings earlier. It is not the case of the complainant party that the accused party was in power or influential to prevent the complainant from prosecuting the accused persons earlier. On the other hand a perusal of the facts and circumstances of the case indicate that the complainant party was comparatively more powerful and influential than the accused party. Even the Investigating Officer A. S. I. Sardar Muhammad has admitted that the S. H. O.

told him that Major Tehseen Khan directed him for registration of the case and arresting V the accused person. Noor Khan complainant at the relevant time was a Hawaldar in the army and he has admitted in his statement that he appeared before Major Tehseen Khan in connection with this case and the present case was registered by the Police under the directions of the said Major Tehseen Khan who at the relevant time was performing some Martial Law duties at Mianwali, In this factual background the question of any influence of the accused party for not getting the case registered against them earlier would not arise rather it was due to the influence of the complainant party that the present case was registered against the accused-respondent after such a long time. In this factual background the examples quoted by the learned Chief Justice would not be applicable to the present case. In the absence of any explanation for delay of about 11 years, the complainant party cannot claim any benefit of their own negligence. The trial Court has therefore, rightly given the benefit of doubt to the accused persons in this behalf.

3. At the end of the judgment, the learned Chief Justice has observed as under:—

It was in view of this that I had asked the learned counsel for the respondent to advise his clients correctly about the legal position so that any conscious persistence on their part to flout the law may not land them in the difficulty of another prosecution.”

Again I find myself unable to agree with the above observation for the reason that after giving the benefit of doubt to the accused respondents v regarding the present occurrence, they cannot be

prosecuted for the second V time for the same alleged offence. This anomalous position would be against the basic principle of criminal jurisprudence that once a benefit of doubt is given to an accused person regarding a particular offence the same cannot be withdrawn and he cannot be prosecuted/punished for the same offence again unless it is established that earlier benefit of doubt was obtained through fraud.

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